

CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL VALLEY REGION

ORDER NO. R5-2012-0109

RESCINDING NPDES AND WDR ORDERS

- a) Waste Discharge Requirements Order R5-2003-0050, adopted on 14 March 2003, prescribes requirements for the discharge of process wastewater from the former Spreckels Sugar Company, Inc. Tracy facility in San Joaquin County. Spreckels has not operated the sugar processing plant for several years and has cooperated with staff in closing the former precipitated calcium carbonate ponds. There is currently no discharge to the industrial wastewater system, with the exception of storm water runoff from portions of the site. On 15 June 2012, Spreckels informed staff that facility and land had been sold to Holly Commerce Center, LLC. Because the current owner has no plans to operate a sugar processing facility, the WDRs are no longer appropriate or necessary. The new property owner was notified of staff's intent to request rescission of the WDRs on 6 August 2012 and did not respond. Therefore, it is appropriate to rescind WDRs Order R5-2003-0050
- b) Waste Discharge Requirements Order R5-2004-0118 (NPDES No. CA0004812), adopted 10 September 2004, prescribes requirements for the discharge from the San Joaquin Fish Hatchery (Facility) to the San Joaquin River. The Facility is on property owned and operated by the State of California Department of Fish and Game. The Facility discharges to the San Joaquin River, a water of the United States, in Section 7, T11S, R21E, MDB&M, Fresno County. On 19 July 2012, the Department of Fish and Game submitted a Notice of Intent and applied for coverage under the General Waste Discharge Requirements for Cold Water Concentrated Aquatic Animal Production Facility Discharges (General Order R5 2010 0018 01, NPDES No. CAG135001). Based on the information in the Notice of Intent and supplemental information, the discharge meets the required conditions for coverage under the General Order and a Notice of Applicability will issued by the Executive Officer granting coverage under the General Order. Consequently, Order R5-2004-0118 is no longer necessary.
- c) On 22 June 2007, the Central Valley Water Board adopted Waste Discharge Requirements Order R5-2007-0063 (NPDES Permit No. CA0079197), authorizing the City of Atwater (Discharger) to discharge treated wastewater from the Discharger's wastewater treatment facility (Facility) to the Atwater Drain. Order R5-2007-0063 includes effluent limitations for several constituents with which the Discharger could not comply by the 18 May 2010 full compliance date; therefore, the Executive Officer of the Central Valley Water Board issued Time Schedule Order R5-2010-0903 on 18 May 2010. On 4 August 2009, the Discharger submitted a Report of Waste Discharge for a new regional wastewater treatment facility (Regional Plant) built at a different location to replace the Facility and comply with more stringent effluent limitations. The Central Valley Water Board adopted new Waste Discharge Requirements and a new NPDES permit for the Regional Plant on 1 December 2011. The former Facility ceased discharge on 4 June 2012, and the Regional Plant commenced discharge on 6 June 2012. Therefore, Order R5-2007-0063 (NPDES Permit No. CA0079197) and Order R5-2010-0903 are no longer necessary.

IT IS HEREBY ORDERED that the above NPDES and WDR orders are rescinded.

I, PAMELA C. CREEDON, Executive Officer, do hereby certify the foregoing is a full, true, and correct copy of an Order adopted by the California Regional Water Quality Control Board, Central Valley Region on October 5, 2012.


PAMELA C. CREEDON, Executive Officer